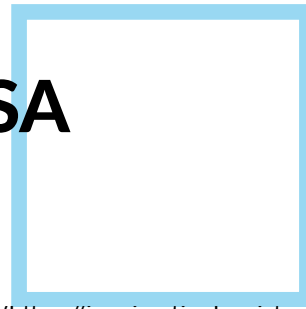


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PARENT OF A CHILD VISA



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PARENT OF A CHILD VISA

The Parent of a Child Visa allows a parent of a child to live in the UK in order to care for their child. The child must be living in the UK already and be either a British or Irish citizen, settled in the UK or in the UK with pre-settled status.

The Parent of a Child Visa can lead to indefinite leave to remain or settlement in the UK after a period of 5 years.

If you are eligible to apply as a Spouse (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/spouse-visa/>), Civil Partner (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/civil-partner-visa/>), Unmarried Partner (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/unmarried-partner-visa/>), Fiance (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/fiance-visa/>) or Proposed Civil Partner (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/proposed-civil-partner-visa/>) then you should apply on the applicable partner route rather than as a Parent of a Child.

Parent of a Child Visa Requirements

In order to qualify for a Parent Visa to enter the UK, you will need to satisfy UK Visas and Immigration that you meet the following requirements:

- You are at least 18 years old;
- Your child is under the age of 18;
- Your child is living in the UK;
- Your child is either a British or Irish citizen, settled in the UK or in the UK with pre-settled status;
- Either (i) you have sole parental responsibility for the child; or (ii) the parent or carer whom the child normally lives is a British or Irish Citizen in the UK, settled in the UK,

Privacy - Terms

- in the UK with pre-settled status, they are not your partner, you are not eligible to apply for entry clearance as a partner under Appendix FM of the Immigration Rules and you (2) have direct access (in person) to the child, as agreed with the parent or carer with whom the child normally lives or as ordered by a court in the UK;
- You are taking, and intend to continue to take, an active role in the child's upbringing;
 - You can maintain and accommodate yourself and any dependants in the UK without recourse to public funds;
 - You satisfy an English language requirement.

The exact requirements you will need to satisfy may vary depending on your personal circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Parent of a Child Visa application with one of our immigration barristers, contact our Parent Visa lawyers on 0203 617 9173 or complete our enquiry form below.

Status of the Child in the UK

In order to qualify for a Parent of a Child Visa for entry to the UK, your child must be living in the UK and either:

- Be a British or Irish citizen in the UK; or
- Have indefinite leave to remain, settled status or permanent residence in the UK; or
- Have pre-settled status under Appendix EU.

Your child must be physically present in the UK at the date of application and you should intend to make the UK your home with your child. The Parent of a Child route is not appropriate if your child is overseas.

If you are applying for leave to remain as a Parent of a Child from within the UK, the above-mentioned status requirements apply, but you may also qualify if your child is not British or Irish, settled or holding pre-settled status but has lived in the UK for 7 years continuously and you can satisfy the Home Office that it would not be reasonable for your child to leave the UK.

Age Requirement for a Parent Visa

You must be over the age of 18 on the date when you submit your Parent Visa application and your child must be under the age of 18.

If your child reaches the age of 18 after you have submitted your application but before a decision has been made then this will not impact your application.

If your child has turned 18 by the time you need to apply for an extension or stay as a Parent of a Child, this will not be a problem either, provided the child was under 18 when you were first granted leave as a parent on the Parent of a Child route and the child has not formed an independent family unit and is not leading an independent life.

Who Qualifies as a Parent?

As well as including a natural parent, for the purpose of a Parent of a Child Visa application a 'parent' is defined as including:

- The stepfather of a child whose father is dead (and the reference to stepfather includes a relationship arising through civil partnership);
- The stepmother of a child whose mother is dead (and the reference to stepmother includes a relationship arising through civil partnership);
- The father as well as the mother of an illegitimate child where he is proved to be the father;
- An adoptive parent, where a child was adopted in accordance with a decision taken by the competent administrative authority or court in a country whose adoption orders are recognised by the UK, or where a child is the subject of a de facto adoption in accordance with the requirements of paragraph 309A of the Immigration Rules (except that an adopted child or a child who is the subject of a de facto adoption may not make an application for leave to enter or remain in order to accompany, join or remain with an adoptive parent under paragraphs 297 to 303);
- In the case of a child born in the UK who is not a British Citizen, a person to whom there has been a genuine transfer of parental responsibility on the grounds of the original parent or parents' inability to care for the child.

For both entry clearance and leave to remain applications as a Parent of a Child, if your child normally lives with their other parent or carer (who is British or Irish, settled in the UK or in the UK with pre-settled status) then that person cannot be your partner.

Parental Responsibility

In order to qualify for a Parent of a Child Visa, you will either need to have sole parental responsibility for your child or you will need to share parental responsibility with the parent or carer with whom your child normally lives.

Sole parental responsibility

Sole parental responsibility means that one parent has abandoned parental responsibility, and the other parent is solely responsible for making all the important decisions in relation to the day-to-day care and upbringing of the child.

If relying on sole parental responsibility, the Home Office will expect to see comprehensive supporting documentary evidence confirming that you are solely responsible for your child's welfare and that others do not share this responsibility for your child. Our immigration barristers can advise you on the documents that are required by the Home Office in order to demonstrate sole responsibility for a child as part of a Parent Visa application.

Your child will normally live with you and not their other parent (who is British or Irish, settled in the UK or in the UK with pre-settled status) and you must not be eligible to apply for leave to remain as a partner.

- Understanding Sole Responsibility in Immigration Law
(<https://immigrationbarrister.co.uk/understanding-sole-responsibility-in-immigration-law/>)

Shared parental responsibility

If you have shared parental responsibility with the other parent or carer of your child, that other parent or carer must not be your partner and must also either be a British or Irish citizen; or have indefinite leave to remain, settled status or permanent residence in the UK; or have pre-settled status under Appendix EU.

This head of parental responsibility is often relied on by parents to remain in the UK where their relationship with a British citizen or settled parent has broken down, but they have shared or equal custody of a child in the UK, and it is in the child's best interests for them to remain.

Your child may normally live with you (and not their British citizen or settled parent) in the UK. If the child normally lives with their other British citizen or settled parent or carer, in order to demonstrate shared responsibility you must have direct access to the child in person, as agreed with the other parent or carer with whom the child normally lives or by a court order. You may wish to consult an immigration lawyer in relation to the documents required to prove shared responsibility for a Parent Visa application.

Active Role in the Child's Upbringing

As part of your application for a Parent of a Child Visa you will also need to satisfy the Home Office that you are taking, and intend to continue to take, an active role in your child's upbringing.

The Home Office will expect to see comprehensive supporting documentary evidence to confirm that you are taking an active role in your child's upbringing and that you plan to continue to do so once your application has been decided. Our immigration barristers can advise you on the documents required by the Home Office and check your documents for compliance with the Immigration Rules.

Parent of a Child Visa Financial Requirement

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(<https://www.google.co.uk>

As part of your application for entry clearance or leave to remain as a Parent, you will need to provide evidence that you will be able to adequately maintain yourself and any dependents in the UK without recourse to public funds.

Adequate maintenance is where the projected weekly income ("A"), less weekly accommodation costs ("B"), would be equal to, or more than, the amount the family would be entitled to if they were in receipt of income support or equivalent ("C"). In order to calculate whether the amount held in cash savings is sufficient, the total amount must be divided by the number of weeks of limited leave that would be granted if the application was successful ("A"). The formula for calculating adequate maintenance is the same as with weekly income: $A - B \geq C$. We can assist you with the formula and advise you as to the specified financial evidence that must be submitted.

- Adequate Maintenance Requirement – Appendix FM
(<https://immigrationbarrister.co.uk/adequate-maintenance-requirement-appendix-fm/>)

Parent of a Child Visa Accommodation Requirement

Whether you are applying for entry clearance or for leave to remain as a Parent, you will need to provide evidence that there will be adequate accommodation available for the family, including other family members who are not included in the application but who live in the same household, without the need to rely on public funds, in accommodation which the family own or occupy exclusively.

You will need to provide evidence as to the basis on which the property is owned or occupied, that you are legally and exclusively entitled to occupy the property and that the property will not be overcrowded or contravene public health regulations.

Parent of a Child Visa English Language Requirement

Unless exempt, as part of your Parent Visa application you will need to satisfy the Home Office that you satisfy an English language requirement.

When applying for entry clearance or to switch into the Parent of a Child Visa route you will need to demonstrate competence in the English language to at least CEFR level A1.

You can meet the Parent Visa English language requirement by:

- Holding the nationality of a majority English speaking country;
- Passing an approved English language test at or above the required CEFR level, with an approved provider as set out on Approved Secure English Language Tests and Test Centres (<https://www.gov.uk/guidance/prove-your-english-language-abilities-with-a-secure-english-language-test-selt>); or

- Having an academic qualification which is either a Bachelor's or Master's degree or PhD if awarded in the UK; or, if awarded outside the UK, is deemed by [Ecctis \(formerly UK NARIC\)](https://www.ecctis.co.uk) to meet or exceed the recognised standard of a Bachelor's or Master's degree or PhD in the UK, and Ecctis (formerly UK NARIC) has confirmed that the degree was taught or researched in English at or above the required CEFR level.

In order to be exempt from the English language requirement you will normally have to prove that either:

- You are over the age of 65 at the date of application;
- You have a physical or mental disability which prevents you from meeting the English language requirement;
- There are exceptional circumstances which mean that you cannot satisfy the English language requirement before entering the UK.

If you are not able to demonstrate that you meet the English language requirement (or are exempt), then your Parent Visa application will be refused.

Parent Visa Supporting Documents Checklists

The most common reason for a Parent Visa application to be refused is because the applicant fails to include sufficient documentary evidence in support of their application.

The Immigration Rules contain strict requirements in terms of the documents that must be submitted in support of a UK Parent Visa application. Every case is different and the required supporting documents for a Parent Visa application will vary from case to case.

Applicants should be very careful when using pre-prepared document checklists for Parent Visa applications. Advice from an immigration lawyer will ensure that the documents listed are appropriate for individual circumstances.

At the same time, if a required document is not provided, is in the wrong format or does not contain all mandatory information then the application for a Parent Visa may be refused. Appeals can take many months to be determined and the outcome may be uncertain. A fresh application will involve further cost and additional delay.

Our immigration barristers provide expert advice to Parent Visa applicants in relation to the documents required for a successful Parent Visa application and also check supporting documents for compliance with the Immigration Rules.

To discuss your Parent of a Child Visa application with one of our immigration barristers, contact our Parent Visa lawyers on 0203 617 9173 or complete our enquiry form below.

Parent of a Child Visa Application Fee

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The Home Office application fee (<https://www.gov.uk/government/publications/visa-regulations-revised-table/home-office-immigration-and-nationality-fees-29-march-2019>) for a UK Parent Visa application submitted outside the UK is currently £1,846. The Home Office application fee to switch into the Parent category from within the UK or extend stay as a Parent is currently £1,048. Additional fees will apply if you use the Priority or Super Priority Service. (<https://www.google.co.uk>)

Duration of a UK Parent of a Child Visa

If your application for a UK Parent of a Child Visa is successful, your Parent Visa will be valid for 33 months initially. If you apply for leave to remain in the UK as a Parent of a Child then you will be granted leave valid for 30 months.

Before your initial grant of leave expires, you will need to apply to UK Visas and Immigration to extend your stay. If your application for further leave to remain as a Parent is successful then you will be granted further leave to remain for a period of 30 months.

After spending 5 years in the UK as a Parent, you will be eligible to apply for indefinite leave to remain. You will not be able to include time spent in the UK on any other immigration route.

Switching Into the Parent of a Child Visa Route From Within the UK

An application for leave to remain as a parent can be made from within the UK, unless you are in the UK as a visitor or, with few exceptions, with valid leave granted for a period of 6 months or less.

Visitors who wish to settle in the UK as a parent of a child in the UK should leave the UK and apply for entry clearance as a parent from overseas.

If you are in the UK with permission granted pending the outcome of family court proceedings then, exceptionally, you can apply for leave to remain as a parent from within the UK.

Working in the UK on a Parent Visa

Parent Visa holders have a full right to work in the UK.

Indefinite Leave to Remain as a Parent

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If your Parent Visa application is successful, you will initially be granted permission to enter the UK for a period of two and a half years (plus an additional three months if applying for entry clearance). You will need to make an extension application before the expiry of your leave. If your parent extension application is successful then you will be granted further leave for a period of two and a half years.

After spending 5 years (60 months) in the UK on the Parent Visa route, you may be eligible to apply for indefinite leave to remain in the UK.

In order to qualify for indefinite leave to remain as a parent you will need to demonstrate, in addition to the above requirements, that:

- You meet the higher CEFR Level B1 English Language requirement that applies to settlement applications;
- You have passed the Life in the UK test (<https://immigrationbarrister.co.uk/life-in-uk-test-what-is-it-and-when-is-it-required/>) (unless exempt).

If you make an application for indefinite leave to remain as a parent but do not satisfy the above requirements, UK Visas and Immigration will go on to consider if you meet the requirements for a further extension of stay as a parent.

Parent of a Child Visa Frequently Asked Questions

What Will Happen if My Child Turns 18?

If your child reaches the age of 18 after you have submitted your Parent of a Child visa application but before a decision has been made then this will not impact your application.

If your child has turned 18 by the time you need to apply for an extension or stay as a parent, this will not be a problem provided they were under 18 when you were first granted leave as a parent on the Parent of a Child route and they have not formed an independent family unit and are not leading an independent life.

Can I Qualify for a Parent of a Child Visa if My Child Lives With My Partner?

No, if your child normally lives with your partner then you will not qualify for leave on the Parent of a Child route. This is the case even where your partner is a British citizen or settled parent or carer. You may wish to consider your eligibility for entry clearance or leave to remain on a partner or private life route instead.

Where Can I Apply for A UK Parent Visa?

If you are applying for a Parent Visa from outside the UK then you should apply in the country where you are resident (otherwise than as a visitor). You do not need to be a citizen of the country. <https://www.google.co.uk/search?q=immigration+barristers+in+perth+chambers&rlz=1C1GCEMMD7chambers+in>

If you are already in the UK and have been granted permission to stay for a period of more than six months then you can apply for leave to remain as a parent from within the UK.

If you have been granted a period of leave of six months or less, such as a visitor, you will generally need to leave the UK and apply for entry clearance as a parent from overseas. The concession which allowed visitors to apply from within the UK during the Covid-19 pandemic is no longer in force.

How Do I Apply for a UK Parent Visa?

Parent Visa applications are made using an online application form. There is a different application form, depending on whether the applicant is applying from inside the UK or overseas.

Before you apply for a UK Parent Visa you should check the correct application form for your individual circumstances with an immigration lawyer.

You should prepare your supporting documents while you are preparing your Parent Visa application form, as there are some specific document requirements which necessitate that your documents are dated before the date that you submit the online application form.

The current system allows individuals to upload scans of their parent visa supporting documents for the Home Office to review. However, you should check the individual procedure for the country in which you intend to apply at the time when you are applying, as the Home Office changes this system from time to time.

What if My Parent of a Child Visa Application Is Refused?

If your application for a UK Parent of a Child Visa is refused then you should have a **right of appeal** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/first-tier-tribunal-immigration-appeal/>). This is because a parent application is automatically deemed a human rights claim.

The appeal will be heard at the **First-tier Tribunal (Immigration and Asylum Chamber)** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/first-tier-tribunal-immigration-appeal/>) in the UK.

If you are in the UK, you will be able to attend and give evidence before the Judge.

If you are outside of the UK, you can write a statement and provide evidence for the Tribunal to consider. Arrangements may be made for you to give evidence remotely if this is appropriate in your case.

Immigration appeal proceedings can take many months to be determined and the outcome may be uncertain. Again, we recommend seeking legal advice and representation from a specialist immigration lawyer before appealing against a decision to refuse a Parent Visa application. <https://www.google.co.uk/search?q=richmond+chambers+in+immigration+barristers>

What if I Cannot Satisfy the Requirements for a UK Parent Visa?

If you are not able to satisfy the requirements for a UK Parent Visa you may still be able to enter or remain in the UK on human rights grounds if, for example:

- You have a child in the UK who is a British or Irish citizen;
- You have a child in the UK who has lived in the UK for at least 7 years and it would be unreasonable for them to leave the UK;
- It would otherwise breach human rights to prevent you from coming to the UK or to make you leave the UK.
- **Exceptions to Appendix FM Partner & Parent Visa Requirements**
(<https://immigrationbarrister.co.uk/exceptions-to-appendix-fm-partner-parent-visa-requirements/>)

How Our Immigration Barristers Can Help

Our immigration barristers regularly assist foreign national Parents to relocate to, and settle in, the UK with their children. We have assisted scores of foreign national parents to prepare and submit successful UK Parent Visa applications.

Whether you require expert advice on the requirements of the Immigration Rules for a Parent Visa, an independent assessment of your prospects of qualifying for a Parent Visa or professional assistance with preparing a Parent Visa application, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team of immigration barristers, dedicated to providing clear and reliable immigration advice to individuals applying for a UK Parent Visa as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

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By Stefania Patuto - Immigration Barrister

25 Aug 2025

For those applying for entry clearance or leave to remain in the UK as a partner under Appendix FM, strict financial requirements must be met to qualify.

(<https://immigrationbarrister.co.uk/third-party-support-in-appendix-fm-applications/>)

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Meeting the English Language Requirement Using an Academic Degree

(<https://immigrationbarrister.co.uk/meeting-the-english-language-requirement-using-an-academic-degree/>)

By Richmond Chambers -

29 Apr 2022

You must satisfy the Home Office that you meet the English language requirement when applying as a parent of a child under 18, or as a partner/spouse under Appendix FM. You can meet the English language requirement... <https://www.google.co.uk/search?q=richmond+chambers+in>

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LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)
E / info@richmondchambers.com (mailto:info@richmondchambers.com)

MONTREUX OFFICE

Avenue Des Alpes 80B
Montreux 1820
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)
E / info@richmondchambers.ch (mailto:info@richmondchambers.ch)

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